

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507266	GEVORGYAN VS FLOREA	DEMURRER ON COMPLAINT FOR MEDICAL MALPRACTICE (OVER \$35,000) OF GRETA GEVORGYAN BY ANDREW FLOREA, M.D.

Tentative Ruling:

SUSTAIN the demurrer with 30 days leave to amend.

Defendant Florea demurs to the fourth cause of action for Intentional Infliction of Emotional Distress (IIED) in Plaintiff Greta Gevorgyan's Complaint filed on 6/11/2026. Defendant Florea argues that the IIED cause of action fails to state facts sufficient to constitute a cause of action and is uncertain.

The elements of a prima facie case for the tort of IIED are (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering of severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.

Here, the alleged outrageous conduct arises out of a physician-patient relationship. California recognizes that a IIED claim may arise from a physician-patient relationship. Plaintiff avers that Dr. Florea performed unnecessary surgery on Plaintiff and that Dr. Florea reversed a previous finding with respect to an enlarged nasal turbinate to justify the subsequent surgery. The problem is that these allegations are inherently conclusory. The key issue is whether the factual allegations allow for a reasonable inference of a bad-faith reversal of the documented finding to justify the surgery, or whether they support a legitimate clinical re-evaluation that might indicate medical negligence or uninformed consent. Contradictory entries in the medical chart do not necessarily compel an inference of a bad-faith reversal. The Complaint lacks specific, nonconclusory facts demonstrating why the September 2024 findings could not plausibly represent a valid clinical re-evaluation. As currently pleaded, the alleged failure to disclose Empty Nose Syndrome, alternatives, and risks, even if true, fall under the informed consent principles. Without more, omission of risk disclosures and the selection of a more aggressive procedure do not exceed all bounds tolerated in a civilized community, i.e., is not outrageous. With respect to Dr. Florea's postoperative conduct, the Complaint lacks specific facts showing when and how Dr. Florea acquired actual knowledge of the full scope of Plaintiff's psychological deterioration. The Complaint does not identify, for example, that Plaintiff told Dr. Florea at a particular visit that she was suicidal, or that specific postoperative encounters occurred after Dr. Florea learned of that symptom, or that Dr. Florea was otherwise made aware of diagnosed psychological deterioration before he continued with his course of treatment. The Complaint as currently pled does not support a finding of conscious or reckless disregard for the emotional distress suffered by Plaintiff. At most, the Complaint supports an inference that Dr. Florea acted with negligence or inattentiveness in his treatment and follow-up care rather than with conscious disregard for Plaintiff's

emotional well-being. The Complaint does not allege facts showing that emotional distress was substantially certain to result from the procedure, nor does it indicate that Dr. Florea was aware during the postoperative visits that Plaintiff was suffering from suicidal ideation and ignored the need for an evaluation and referral.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602157	QUIRARTE VS GENERAL MOTORS, LLC	DEMURRER TO ANSWER ON COMPLAINT FOR PRODUCT LIABILITY (OVER \$35,000) OF ABRAHAM R. QUIRARTE AS TO GENERAL MOTORS, LLC

Tentative Ruling:

SUSTAIN with 30 days leave to amend.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2603102	COUNTY OF RIVERSIDE VS PEREZ	MOTION FOR PRELIMINARY INJUNCTION BY COUNTY OF RIVERSIDE

Tentative Ruling:

GRANT